

Ch1 国际贸易简介

Brief Introduction to International Trade

- 贸易术语的作用是什么？E、F、C、D字组贸易术语分别具有什么特点？
- Incoterms 2010 是怎样对贸易术语分类的？

字头	简称	全称	解释	Critical point分离
E	EXW	Ex Works	啥也不干，只交货	
F	FCA	Free Carrier	承运人+清关手续	
	FAS	Free Alongside Ship	船边（海）	
	FOB	Free on Board	船上（海）	
C	CFR	Cost & Freight	船上+成本+运费（海）	✓ 只有C字头
	CIF	Cost, Insurance & Freight	CFR + 保险（海）	✓
	CPT	Carriage Paid to	承运人+运费	✓
	CIP	Carriage and Insurance Paid to	CPT + 保险	✓
D	DAT	Delivered At Terminal	集散站（菜鸟）+ 出口清关	
	DAP	Delivered At Place	目的地 + 出口清关	
	DDP	Delivered Duty Paid	完税 一切风险	

用法：币种+价格+XXX+目的地，USD 10.00 per set XXX Chingdao

- 两个临界点 Critical point

1. 交货临界点（Critical Point for Delivery），又称风险临界点（Critical Point for Risk），货物运到这个临界点，从法律观念上可以认为卖方已尽到交货

责任，在这个临界点以前货物遇到风险发生损失由卖方承担责任，在这个临界点以后货物遇到风险发生损失由买方承担责任。

2. 费用临界点 (Critical Point for Cost), 在这个临界点以前发生的运费 (有时加保险费) 由卖方负担, 在这个临界点以后发生的运费 (有时加保险费) 由买方负担。

- 国际支付与结算方式的两种分类方法? 举例说明。

- Settlement on commercial credit 基于商业信用的结算

1. Payment in advance 预付货款

It is also called advance payment. The buyer places the funds at the disposal of the seller prior to shipment of the goods or provision of services.

这也称为预付款。买方在装运货物或提供服务之前, 将资金交由卖方支配。

- a. Characteristics 特点

Basic points to be considered in using advance payment

在使用预付货款结算方式时应考虑的一些基本问题

2. Open account 赊销

An arrangement between the buyer and seller whereby the goods are manufactured and delivered before payment is required.

买方和卖方之间的一种安排, 根据该安排, 货物在付款之前制造和交付。

3. Remittance 汇款

Remittance refers to the transfer of funds from one party to another among different countries.

汇款是指资金在不同国家之间从一方转移到另一方。

- a. the remitting bank 汇款行

- b. the remitter 汇款人

- c. the paying bank 付款行

- d. the payee or beneficiary 收款人或受益人

4. Collection 托收

An arrangement whereby the goods are shipped and the relevant bill of exchange is drawn by the seller on the buyer, and documents are sent

to the seller's bank with clear instruction for collection through one of its correspondent banks located in the domicile of the buyer.

一种安排，即卖方装运货物并向买方开具相关汇票，并通过买方住所内的一家代理银行将单据发送给卖方银行，并附有明确的托收指示。

a. Documentary collection:跟单托收

i. Financial instrument 金融单据：指汇票、本票、支票、付款收据或其它类似的用以取款的凭证。

ii. Commercial document 商业单据：指发票、运输单据、物权单据，或其它相似的单据，或不是金融单据的其他任何单据。

b. Clean collection:光票托收

◦ Settlement on bank credit 基于银行信用的结算

1. Letter of credit 信用证

A letter of credit is an undertaking issued by a bank for the account of the buyer (the Applicant) or for its own account, to pay the Beneficiary the value of the draft and / or documents, provided that the terms and conditions of the documentary credit are complied with.

信用证是银行为买方（申请人）或其自己的账户开立的承诺，在遵守跟单信用证的条款和条件的前提下，向受益人支付汇票和/或单据的价值。

2. Bank guarantee 银行保函

A bank guarantee is a written promise issued by a bank at the request of its customer, undertaking to make payment to the beneficiary within the limits of a stated sum of money in the event of default by the principal.

银行保函是银行应客户要求出具的书面承诺，承诺在委托人违约的情况下，在规定的金额范围内向受益人付款。

◦ 结算方式按资金的流向和结算工具传送的方向分类，有顺汇和逆汇两大类别。

1. 顺汇 (Remittance)

又称汇付法，是由债务人或付款人主动将款项交给银行，委托银行使用某种结算工具，交付一定金额给债权人或收款人的结算方法。其特点是结算工具的传递与资金的运动方向一致，并且是从付款方传递到收款方。故名之顺汇。

a. 如银行汇款业务 (Bank remittance service)。

2. 逆汇 (Reverse Remittance)

又称出票法，是由债权人以开出汇票的方式，委托银行向国外债务人索取一定金额的结算方式。其特点是结算工具传递方向与资金运动方向相反。

a. 如托收和信用证 (Collections and letters of credit) 。

Ch2 国际支付与结算概述

Introduction to International Payments and Settlements

- 简述国际支付与结算的演变过程。
 1. From cash settlement to non-cash settlement 从现金结算到非现金结算
 - a. Cash settlement 现金结算
 - b. Non-cash settlement 非现金结算
 2. From direct payment made between international traders to payment effected through a financial intermediary 从贸易商之间直接支付到通过金融中介进行支付
 3. From payments under simple price terms to payments under more complex price terms 从使用简单贸易术语结算到复杂贸易术语的结算
 4. Internet era 互联网时代的结算

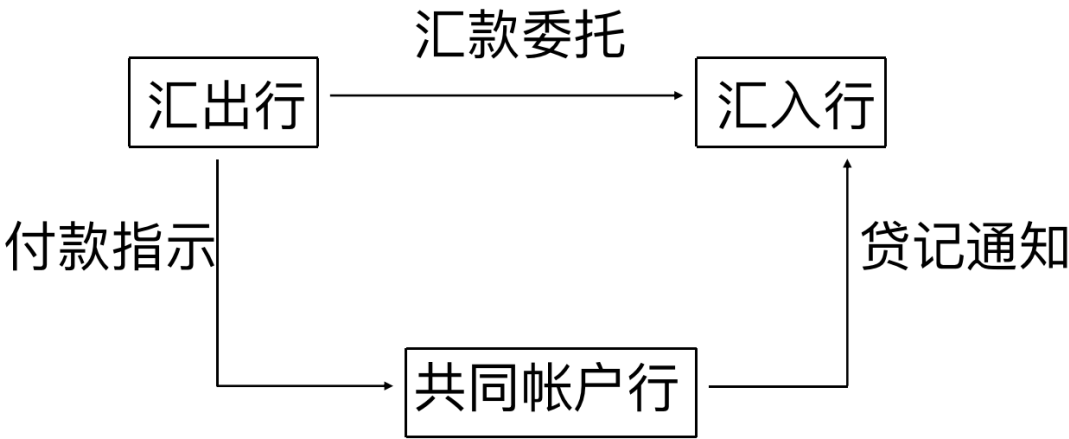
- 举例说明往帐和来帐。
 - 随着银行间代理行关系的建立，需要在对方银行开来一个往来帐户或支票帐户
For ICBC Hong Kong,
 1. Nostro account (往账，我方帐户，我行在他行开设的账户)

Case: ICBC Hong Kong's account with Citibank N.Y. denominated in USD
 2. Vostro account (来账，贵行账户，他行在我行开设的账户)

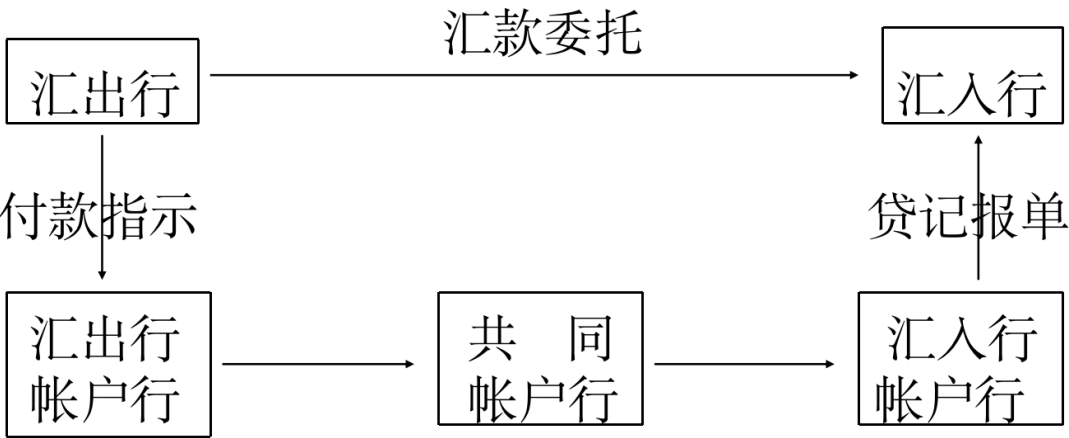
Case: Citibank N.Y.'s account with ICBC Hong Kong, denominated in HK\$

- 银行间主要偿付方式。
 1. 帐户行直接入帐类
 - a. 汇出行是汇入行的帐户行，则汇出行办汇出手续时先贷记汇入行的帐户
 - b. 汇入行是汇出行的帐户行，则汇入行在收到指示时借记汇出行的帐户

2. 共同帐户行转帐类



3. 帐户行的共同帐户行转帐类



Ch3 信用工具

Credit Instruments

- 正当持票人应具备什么条件？
 - 流通票据当事人 Parties to a negotiable instrument

序号	英文	中文	备注
1	Drawer	出票人	付款前的即期票据、承兑前的远期票据， 出票人为主债务人
2	Drawee	付款人或受票人	如买方、银行，承兑后成为主债务人
3	Payee	收款人	主债权人
4	Acceptor	承兑人	承兑票据的主债务人
5	Endorser	背书人： 第一背书人、第二背书人	背书人的免责： without recourse to me
6	Endorsee	被背书人	
7	Acceptor for honor	参加承兑人	
8	Guarantor	保证人	
9	Holder	持票人： 收款人、被背书人或来人	a. Holder for value 付过对价持票人 b. Holder in due course 正当持票人

- 正当持票人是经过转让而持有票据的人。应具备的条件：
 1. 票据表面完整正常
 2. 取得票据时没有过期
 3. 不知道票据曾被退票
 4. 善意地取得票据并支付对价

我国《票据法》第12条：“以欺诈、偷盗、胁迫等手段取得票据的，或者明知有前列情形，出于恶意取得票据

的，不得享有票据权利。”

5. 不知道票据有何瑕疵或转让人的权利有何缺陷。

所谓“缺陷”，一般是指让与人是否以合法手续取得票据，是否有合法的票据权利。

符合以上条件取得票据的人即为正当持票人，也叫善意持票人，他可以向任何对票据负有债务的前手追索，且他的权利不受前手权利缺陷的影响。

- 什么是汇票抬头？举例说明汇票抬头的不同写法并说明其对汇票流通转让的影响。
 - Bill of Exchange (Draft) 汇票
 - 收款人的名称（汇票上收款人的记载）通常称为抬头，根据抬头的不同写法，确定汇票的可流通性或不可流通性。
 - 不同写法

1. 限制性抬头(Restrictive Order)。

此种抬头的汇票不得转让 (be transferred) 他人。

1. Pay to John Smith only.
2. Pay to John Smith not transferable.
3. Pay to John Smith.

在任何处写有 “Not transferable” 字样。

2. 指示性抬头(Indicative Order)。

此种抬头的汇票可用背书 (endorsement) 和交付 (delivery) 的方法转让。

1. Pay to the order of ABC Co.
2. Pay to ABC Co. or order.
3. Pay to ABC Co.

3. 来人抬头(Payable to bearer)。

来人抬头的汇票仅凭交付而转让，不需背书。

1. Pay to bearer.
2. Pay to ABC Co. or bearer.

只要写上“bearer”字样，不管在它前面是否有具体收款人名称，均视为来人抬头。

- 什么是背书行为？举例说明背书的主要形式。
 - Endorsement: 背书 (an act of negotiation)
 - Prerequisites for a valid endorsement 一个有效背书的必要条件：
 1. 应当在汇票的背面做成并由背书人签字；
 2. 一定要对汇票的全部金额做成背书。
 - Four kinds of endorsements 四种背书形式
 1. Blank endorsement: 空白背书
 - a. 记名抬头的汇票经空白背书后变成支付给来人的汇票。
 - b. 已作空白背书的汇票，任何持票人都可将空白背书转变为记名背书
 - c. 持票人应以不间断的连续背书证明他的权利是正当的。当空白背书后面跟着其次一个背书时，其次的背书人视为前面空白背书的被背书人。
 2. Special endorsement: 特别背书，又称记名背书。
 - a. 记名背书的汇票再次转让时转让人仍需背书。
 3. Restrictive endorsement: 限制性背书
 - a. 限制性背书的汇票，禁止被背书人把汇票再行流通或转让，他只能凭票取款。
 - b. Conditional endorsement: 有条件背书：是在特别背书的基础上加上背书取得付款的一些特殊条件的词语。只有符合了这些条件，背书人才有义务付款。如：“如果约翰·史密斯将100箱玉米运至仓库，即付款给他。”
 - c. 汇票的支付命令必须是无条件的，但作成背书可以带有条件。附带的条件仅对背书人和被背书人有着约束作用，与付款人和出票人无关。付款人可不管条件是否履行，照常付款给持票人，汇票即被解除责任。
 - 本票具有哪些特征，与汇票有何不同之处？
 - Promissory note 本票
-

本票是一人向另一人开立，由制票人签字，保证对某一特定的人或其指定人或持票来人即期或在固定的、或在可以确定的某一日期支付一定货币金额的书面的无条件的付款承诺。

- Characteristics of a promissory note 本票的特征

1. 无条件的书面承诺
2. 基本当事人是制票人和收款人
3. 远期本票不需要承兑
4. 任何情况下制票人都是最主要的债务人
5. 在现代商业交易中，除制票人为银行的本票外，其它本票使用并不广泛

- Difference between a promissory note and a bill of exchange 汇票与本票的不同之处

1. A promissory note is a promise to pay; 本票是对付款的承诺；
2. Two essential parties to a promissory note; 本票之两个主要当事人；
3. The maker is primarily liable on a promissory note; 出票人对本票负有主要责任；
4. A promissory note has an original note only; 本票只有正本；

- 支票具有哪些特征，与汇票有何不同之处？

- Check 支票

支票是由银行的客户向银行开出的，由出票人签字，授权银行对某人或其指定人或持票来人即期支付一定货币金额的书面的无条件支付命令。

- Features of a check 支票的特征

1. 支票必须是无条件付款
2. 支票的付款人必须是银行
3. 支票上必须注明确定的金额，并由出票人签字
4. 收款人可以是来人、一个特定的人或者是他的指定人

- Difference between a check and a bill of exchange 支票与汇票的区别

1. 支票的受票人必须是银行。
2. 支票是支付工具，只有即期付款，没有承兑。

3. 支票的主债务人是出票人，如在合理时间内未能提示要求付款，出票人不能免除责任；如因延迟提示受到损失，出票人仅能解除损失的数额。

- 什么是划线支票？有哪些类型？划线的作用是什么？

- Crossed checks 划线支票

A crossing is in effect an instruction to the paying bank from the drawer or holder to pay the fund to a bank only.

支票的划线实际上是出票人或持票人指示付款银行只能将资金入银行账户的指示。因此，划线支票不能在付款银行取现，必须由代收行向付款行提示付款。

- 类型

1. General Crossing 普通划线

当一张支票的票面有以下的附加内容：

- a. 在两条平行线之间有“and company”字样，或它的缩写(如& Co.)，“not negotiable”字样可有可无；
- b. 只有两条平行线，“not negotiable”字样可有可无；

这些附加内容构成划线，这张支票被普通划线。

普通划线的作用是支票只能转帐付款给另一家银行（即将票款存进银行帐户而不能支付现金）。

2. Special crossing 特别划线

支票带有横过票面的两条平行线，中间有一家银行的名称，即为特别划线。特别划线支票只能转帐付款给划线里面的那家银行。

Ch4 国际银行汇兑

International Bank Remittance

- 银行之间的偿付方法有哪些类型？试举例说明。

- Methods of Reimbursement 偿付方法

汇款业务中的头寸(Cover)是指汇款资金的调拨与偿付。汇出行办理汇出汇款业务，应及时将汇款金额拨交给其委托解付汇款的汇入行，这就叫汇款的偿付(Reimbursement of Remittance Cover) 俗称拨头寸。

- 调拨头寸方法：

1. Crediting vostro account of the paying bank

如果汇入行在汇出行开有往来账户，则贷记汇入行的来帐。

"In cover, we have credited the sum to your account with us."

"作为偿付，我行已将汇款金额贷记你行在我行的帐户。"

2. Debiting remitting bank's nostro account

如果汇出行在汇入行开有帐户，则借记汇出行的往帐

"Please debit the sum to our account with you"

"You are authorized to debit the sum to our account with you."

"请借记我行在你行的帐户。"

3. Instructing a reimbursing bank to effect payment by debiting the remitting bank's nostro account

指示偿付行借记汇出行的往帐来偿付解付行

"In cover, we have authorized The Bank of Tokyo, New York to debit our account and credit your account with the above sum."

“作为偿付，我行已授权东京银行纽约分行就上述金额借记我行帐户贷记你行帐户。”

“In cover, we have instructed The Bank of Tokyo, New York to pay the proceeds to your account with The Standard Chartered Bank, New York.”

“作为偿付，我行已通知东京银行纽约分行将有关收益付至你行在渣打银行纽约分行的账号。”

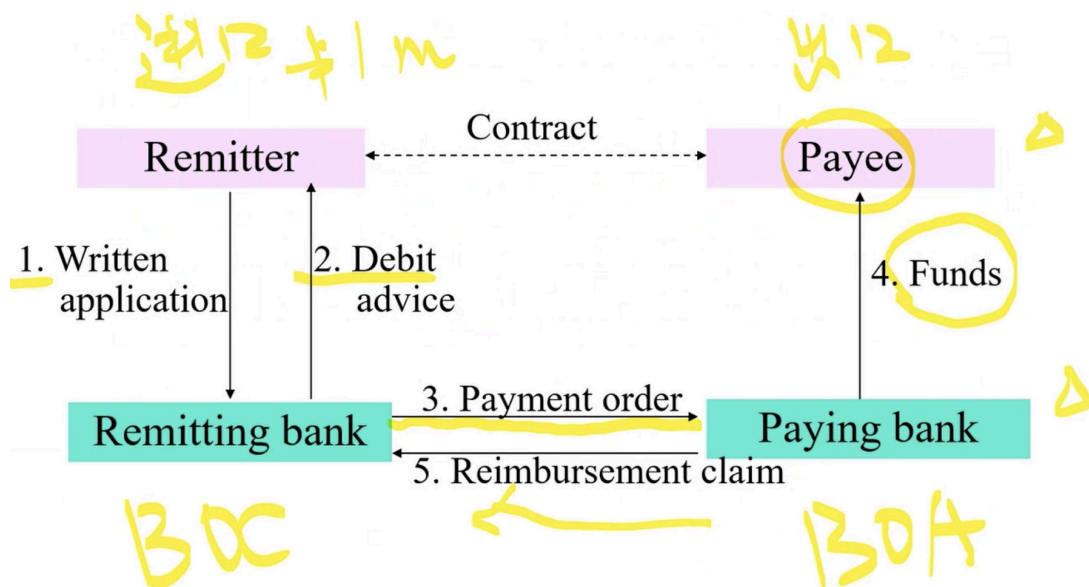
4. Instructing the paying bank to claim reimbursement from another branch of the same bank or another bank with which the remitting bank opens an account

指示解付行向同一家银行的另一家分行或汇出行开有帐户的另一家银行索偿。

“In cover, please reimburse yourselves to the debiting of our account with The Bank of Tokyo, New York.”

“作为偿付，请通过借记我行在东京银行纽约分行的账号进行索偿。”

-
- 国际汇兑的几种方法及其应用。
 - Remittance by airmail (M/T) 信汇汇款
信汇是汇出行通过签发并邮寄支付委托书、信汇通知书或有时是汇出行签发的通知(payment order, a mail advice or credit advice/please debit advice)转移款项的一种汇款方式。
支付委托书、信汇通知书或贷记/借记报单是一家银行向另一家银行开出的书面的真实支付命令，指示后者支付一定货币金额给委托书上指定的某一特定的人或受益人。
 - Remittance by cable / telex / SWIFT (T/T) 电汇汇款
电汇汇款是汇款人(付款人或债务人)委托银行以
电报、电传、环球同业银行金融电讯协会方式，指示出口商所在地某一银行(其分行或代理行)作为汇入行，解付一定金额给收款人的汇款方式。

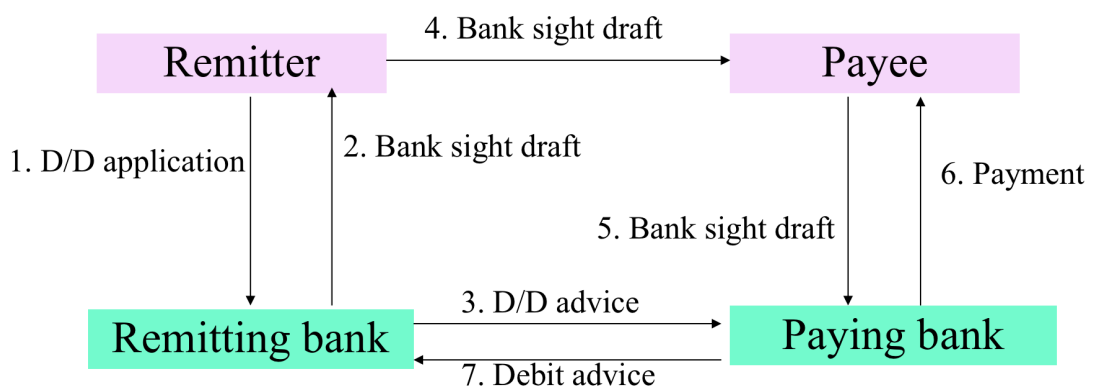


- Remittance by banker's demand draft (D/D) 票汇（银行即期汇票汇款）

A bank's draft is

a **negotiable instrument** drawn by a bank on its overseas branch or its correspondent abroad ordering the latter to pay on demand the stated amount to the holder of the draft. It is often used when the client wants to transfer the funds to his **beneficiary himself**.

银行即期汇票是由汇出行开给它的海外分行或代理行的**流通票据**，指示后者即期支付规定的金额给汇票的持票人。这种汇款方式通常在客户希望自己将款项移交给**受益人本人**时使用。



Ch5 托收

Collection

- 根据所涉及的单据来划分，托收有哪些类型？分别具有什么特点？

- Documentary collection vs. clean collection

1. Documentary collection

Documentary collection may be described as collections on commercial documents with or without being accompanied by financial instruments.

跟单托收可以是附带商业单据的金融票据托收或不附带金融票据的商业单据托收，即并无汇票，单是商业单据的托收：商业本票、付款承诺书、信托收据和保函

This type of collection allows the exporters to **retain ownership of the goods** until they receive payment or acceptance.

Banker's role in documentary collection 银行在跟单托收中的角色

Both remitting bank and collecting bank act as the exporter's agent 在跟单托收中，托收行作为出口商的代理人，通过持有权利凭证来管理商品与价值相交换的时间和次序，直到进口商支付了汇票或承认了债务。

a. Documents against payment (D/P) 付款凭证

The collecting bank may release the documents only against full and immediate payment, insofar as national, federal or local laws or regulations do not prevent it.

代收行在法律或规则不加禁止的范围内，在即时全部收到货款的条件 下交出单据。

- seller优点：安全
- 预防措施：In practice buyers prefers to postpone the takeover of the documents and the payment until **after the arrival of the goods**. (单据的接收和付款推迟**到货物到达后**) In order to prevent the practice, a clear term **"Payment on first presentation of the documents"** (首次提交单据时付款) should be included in the collection order.

i. Documents against payment at sight (D/P at sight) 即期付款交单：

Under this method, the seller issues a sight bill.

- ii. Acceptance against payment (Acceptance D/P)凭远期付款交单
Bills of exchange under this kind of collection are usually term bills. After the bill of exchange has been accepted by the importer, the accepted bill is kept at the collecting bank together with the documents up to maturity.

b. Documents against acceptance (D/A) 承兑汇票

The collecting bank may release the documents to the buyer against the buyer's acceptance of a draft, drawn payable 30~180 days after sight or due on a definite date.

代收行在买方承兑汇票，汇票在见票后30~180天到期付款或在一个确定的日期到期付款的条件下向买方交出单据。

- buyer优点：买方在付款前获得对货物的占有权。
- seller缺点：卖方承担买方不付款的风险。

What the seller should know

The seller should know that he gives up

title to the shipment (货物所有权) in exchange for the acceptance of the bill that represents **his only security in the transaction (他在交易中唯一的担保)** .

2. Clean collection 光票托收

Clean collections are collections on **financial instruments** without being accompanied by commercial documents.

意指金融单据的托收，而不伴随商业单据，如：发票、提单、保险单等等。

Features 特征: Under clean collection, only **the draft and instruction letter (汇票和指示函)** are sent out for collection. The documents are sent directly by the exporter to the importer or the exporter's foreign agent. So, the exporter is **shipping on open account terms (开放账户方式发货)** .

◦ 另外：Direct collection vs. Indirect collection

▪ Definition 定义：

Direct collection is an arrangement whereby the seller obtains his bank's pre-numbered direct collection letter, thus enabling him to send his documents directly to his bank's correspondent bank for collection. This kind of collection accelerates the paperwork process.

是指卖方从他的银行即托收行那里获得托收指示的空白格式，由他自己填写，连同托收单据直接寄给买方银行，即代收行，请其代收货款，并将已经填妥的托收格式副本送给托收行，请其将此笔托收视同本行办理一样。这种托收提高了效率。

- Features 特征 (P90)

1. The seller sends to remitting bank **a copy of** the respective instruction letter.
2. The remitting bank treats this transaction in the same fashion as a normal documentary collection item.
3. By using this service, the exporter **foregoes the chance**放弃机会 of having the bank examine his documents before they are mailed out. But he can benefit from **the bank's follow-up service**银行的后续服务.
4. The collection bank will usually charge the same collection fee that would apply when a bank sends the item directly.

- 在托收业务中，进出口商分别面临什么风险？怎样防范？

- Risks for exporter 出口商的风险

- Types of risk for exporter:

1. Non-acceptance of merchandise 拒收货物

This kind of risk usually happens when there has been **a significant drop in the market price**.

这种风险通常发生在市场
价格大幅下跌时。

Acting as the agent of the exporter, the foreign collecting bank usually offer its assistance in arranging for storage and insurance at the port of destination.

作为出口商的代理人，外国代收行通常会协助安排目的港的仓储和保险。

2. Non-payment of trade acceptance 承兑后拒绝付款

3. Possession of goods 占有货物

Certain governments may demand that the buyer show them the shipping documents before they allocate the needed foreign exchange. In this and similar cases, the document may have to be

released to the importer on

trust receipt.

某些政府可能会要求买方在分配所需外汇之前向其出示货运单据。在这种情况下和类似情况下，可能必须以信托收据的形式向进口商发放单证。

4. Exchange restriction 外汇管制

■ Exporter's measures against risks 出口商防范风险的措施

1. The exporter should always make sure that the overseas importer is of good reputation and of good financial standing.

出口商应始终确保海外进口商信誉良好，财务状况良好。

2. The exporter should take into account the economic and political conditions in the importing country.

出口商应考虑进口国的经济和政治条件。

3. The exporter should also pay attention to the foreign exchange regulation in the importing country.

出口商还应注意进口国的外汇管理。

4. The exporter should take hedging operation or immediate settlement of the account denominated in a foreign currency to avoid losses on foreign exchange transaction.

出口商应对外币账户进行套期保值操作或即时结算，避免外汇交易损失。

○ Risks for importer 进口商的风险

■ Types of risk for importer:

1. Upon D/P collection, no opportunity is available to inspection the goods before making payment.

收到付款交单后，

付款前没有机会检查货物。

2. Upon D/A collection, if a bill is protested, this can ruin the reputation of a trader and may be considered an act of bankruptcy. 在承兑交单托收时，如果汇票被拒付，这可能会破坏交易者的声誉，并可能被视为破产行为。

■ Importer's measures against risks

The importer may be able to protect himself by

requiring an inspection certificate as part of the documentation.

进口商可以通过

要求将检验证书作为文件的一部分来保护自己。

Ch6 信用证

Letter of Credit (L/C)

- 信用证结算方式有什么特点？相对于其它的结算方式有什么优势？
 - A letter of credit places a bank's credit instead of a commercial credit. It is guaranteed by the issuing bank's creditworthiness.
信用证是银行的信用证，而不是商业信用证。这是由开证行的信誉保证的。
 - Its main characteristics are as follows:
 1. The issuing bank undertakes to effect payment, quite independent of whether the applicant is bankrupt or is in default or not, provided the documents presented are in compliance with the terms and conditions of the credit.
在提交的单据与信用证的条款和条件一致的情况下，开证行承担付款的责任，而不管申请人是否破产或是否付款。（开证行负第一性付款责任）
 2. A letter of credit stands independent of the sales contract.

信用证独立于销售合同。虽然信用证是在合同的基础上开立的，但银行并不关心或受制约于合同。银行在开立信用证时不会考虑销售合同但会遵守买方交来的开证申请。
 3. Banks deal with documents and not with goods, services or other performances to which the documents may relate.
在信用证业务中，
银行只处理单据而不处理单据所涉及的货物、服务或其它行为。他们只在提交给他们的单据的基础上审查信用证的条款是否被满足。信用证是单据化业务。
 4. Banks main responsibility is to examine each document presented to see whether it appears **on the face** to be in compliance with the credit terms.
信用证业务所涉及的银行对所提交单据的形式、是否充足、准确度、真实性、是否伪造或合法性不承担责任。银行在这方面的主要责任是审查提交给他们的每一份单据
在表面上是否与信用证条款相符。
- 信用证的有利方面（P110）

1. Facilitates financing the documentary credit

跟单信用证的融资便利：银行信用、卖方安全收汇、买方安全提货、资金融通

2. Provides legal protections 提供法律保护

3. Assures expert examination of documents 保证专业的单据审查

买方可以确信只有在符合信用证条件和跟单信用证统一惯例的情况下才会对卖方付款

• 可转让信用证与背对背信用证在转让信用证权利方面有什么不同？

◦ Transferable credit 可转让信用证

A credit under which the beneficiary (

the first beneficiary) may request the bank authorized to pay, incur a deferred payment undertaking, accept or negotiate (the transferring bank), or in the event of a freely negotiable credit, the bank specially authorized in the credit as the transferring bank to make the documentary credit available in whole or in part to one or more other beneficiary (ies) (second beneficiary).

可转让信用证是指信用证的受益人（

第一受益人）可以请求授权付款、承担延期付款责任、承兑或议付的银行（转让行），或如果是自由议付信用证时可以要求信用证特别授权的转让行，将信用证全部或部分转让给一个或数个受益人（第二受益人）使用的信用证。

只有用“transferable”时才可以转让。其它措辞均不致使信用证可转让，不予理会。

可转让信用证只能转让一次，第二受益人不可以进一步转让。

◦ Back-to-back documentary credit 背对背跟单信用证

A back-to back credit may be used when the credit issued in favor of the exporter (the middleman) is not transferable or though transferable it does not meet his requirements.

背对背信用证在开给出口商（中间商）的信用证不能转让或虽能转让但不符合他的要求的时候使用。出口商，即第一信用证的受益人将其作为开立第二信用证时向通知行或它的银行提供的保障。换句话说，两个信用证“背对背”开出，一个信用证以另一个信用证为担保开出。

The exporter, namely, the beneficiary of the first credit, offers it as a security to the advising bank or his banker for the issuance of a second

credit.

In other words, the two credit are put "back to back", the one being issued on the security of the other. A back-to-back documentary credit involves two

separate documentary credits.

With back-to-back documentary credit, the second credit should be worded so as to produce the documents (apart from the commercial invoice) required by the primary credit, and to produce them within the time limits set by the primary credit, in order that the primary beneficiary under the first credit may be able to present his documents within the time limits of the first credit.

- 背对背信用证与可转让信用证的比较：

1. 背对背信用证的开立并非原始信用证申请人和开证行的意旨，而是受益人的意旨，申请人和开证行与背对背信用证无关。
可转让信用证的开立是申请人的意旨，开证行同意并在信用证上加列“transferable”字样，始可开出可转让信用证。
2. 原始证和背对背证是两个完整、独立的信用证，连同两个完全独立的开证行的付款承诺。
可转让信用证不仅其生存和收到的条款和条件（允许变更的除外）均来自于原始可转让信用证，而且其使用也来自于原始可转让信用证。
3. 背对背信用证的第二受益人得不到原始信用证开证行的付款保证。
可转让信用证的第二受益人可以得到开证行的付款保证。
4. 开立背对背信用证的银行就是该证的开证行。
转让行按照第一受益人的指示开立变更条款的新的可转让信用证，通知第二受益人，该转让行的地位不变，仍是转让行。

- 议付和贴现有何异同？

- 贴现与议付都是融通资金

- 贴现与议付的相同点：

1. 两者都是票据和对价的对流。
2. 两者都是扣收利息、付给净款、然后收回票面金额的融资业务。
3. 贴现人付款给持票人是有追索权的，同样，议付行付款给受益人也是有追索权的。

- 贴现与议付的不同点：

1. 持票人以贴现方式出售的票据有汇票和本票两种，都是远期的。银行议付光票或跟单汇票，只有汇票一种，也可以没有即期汇票而是议付全套单据。
2. 贴现汇票的必要条件是承兑，承兑人是银行。议付跟单汇票的必要条件是汇票单据须符合信用证条款。
3. 较大城市都有票据贴现市场或票据再贴现市场，但是没有议付汇票市场。
4. 贴现票据可以存放至到期日提示要求付款，也可以在到期日以前提示要求再贴现。议付后的跟单汇票不能存放在议付行自己手中，必须寄至开证行要求偿付。

- 根据付款方式划分，信用证分为哪些类型？分别具有什么特点？

- Payment credit / Sight credit 付款信用证/即期信用证

A payment credit is a credit available by payment, under which a bank (the issuing bank/ a third bank/ the advising bank) specifically nominated therein is authorized to pay against the shipping documents with or without a draft presented in conformity with the terms of the credit.

Whenever payment is made, it becomes

a final payment without any right of recourse.

即期付款信用证的指定付款行可以是

开证行、通知行或任何其它的第三家银行。

- Acceptance credit 承兑信用证

The draft thereunder must be

a time bill drawn on the issuing bank, advising bank, or any other drawee bank. The purpose of an acceptance credit is to give the importer time to make payment.

- Deferred payment credit 延期付款信用证

Under this credit, the beneficiary does not receive payment when he presents the documents, but

at a later date specified in the credit. In economic terms, a deferred payment credit is equivalent to acceptance credit, except that in the absence of a bill of exchange there is rare possibility for discounting.

在延期付款信用证项下，受益人在提示单据时不能获得付款，而

要在信用证规定的较晚的日期。在这种付款方式中，进口商在付款之前就获得了单据（并且因此而获得了商品或服务）。延期付款信用证不要汇票。

- Negotiation credit 议付信用证

议付信用证是一种由授权的特别指定的银行议付的信用证，或者由任何银行自

由议付的信用证。所谓的议付是指由授权议付的银行从受益人那里买下汇票或者对汇票及/或单据支付对价。在这种情况下，议付行成为正当持票人。对汇票及/或单据的议付可以向受益人追索，除非信用证已被议付行保兑。

It is one under which a bank specifically nominated therein is authorized to negotiate or one, which is freely negotiable by any bank.

The so-called negotiation is

to buy the draft from the beneficiary or to give value for draft and/or documents by the bank authorized to negotiate. In this case the negotiating bank becomes a holder in due course, it is with recourse to the beneficiary unless the credit has been confirmed by the negotiating bank.

- Types of negotiation credit

1. Free negotiation credit 自由议付信用证

This credit is available by negotiation with any bank. Function clause: P136

2. Restricted negotiation credit 限制议付信用证

The negotiation is restricted to a bank nominated therein and the beneficiary must present his documents to the bank so nominated.

3. Non- negotiation credit (Straight credit)不可议付信用证

The obligation of the issuing bank is extended only to the beneficiary in honor draft(s) / document(s) and usually expires at the counters of the issuing bank.

Ch7 信用证实务

L/C Practice

- 进口商申请开立信用证时应遵循哪些原则？
 - To ensure that the terms and conditions of the credit are in compliance with **the policies of the bank** and in accordance with **the legal requirements** or regulations of the issuing bank.
确保信用证的条款和条件符合
银行的政策和开证行的**法律要求**或规定。
 - To see if every detail is correctly completed.
查看每个细节是否正确完成。
 - To see whether the bank is authorized to choose its own correspondent for advising the credit.
查看银行是否有权选择自己的代理行通知信用证。
 - To see whether the application requires to submit any documents, the performance or production of which is totally dependent on the performance by a third party not controlled by the beneficiary, or whether there are any "**non-documentary conditions**" stated in the application.
查看申请是否要求提交任何文件，其履行或出示完全取决于非受益人控制的第三方的履行，或者申请中是否有任何"**非文件条件**"。
- 开证行在开证时主要审查开证申请书的哪些内容？
 - Banks must examine all documents stipulated in the credit **with reasonable care**.
银行必须
合理谨慎地检查信用证中规定的所有单据。
 - Documents not stipulated in the credit will not be examined by banks.
信用证中未规定的单据，银行不予审核。
 - A nominated bank acting on its nomination, a confirming bank, if any, and the issuing bank shall each have a **maximum of five banking days** following the day of presentation to determine if a presentation is complying.
(UCP600 Art.14)

按照其指定行事的指定银行、保兑行（如有）和开证行在交单日后
最多应有五个银行工作日来确定交单是否相符。（UCP600第14条）

- If the issuing bank decided to refuse the documents, it must give to that effect by **expeditious means** without delay.
如果开证行决定拒绝这些单据，它必须立即以
迅速的方式予以拒绝。
 - Such notice must state **all discrepancies** and also state whether it is holding the documents at disposal of, or is returning them to, the presenter.
此类通知必须说明
所有不符之处，并说明其是否将文件交由提交人处理或退回给提交人。
-
- 开证行在审单时应注意哪些问题？如发现不符点应如何处理？
 - Refuse to accept the documents and return them to the advising or confirming bank.
拒绝接受单据并将其退还给通知行或保兑行。
 - If the discrepancy is **not material** to the transaction, it can ask the buyer for **a waiver** for specific discrepancy.
如果差异对交易
不重要，可以要求买方**放弃（弃权书）**特定差异。
 - The seller may request the opening bank to present the documents to the buyer **on a collection basis**.
卖方可要求开户银行
在托收的基础上向买方提交单据。
 - To pay, negotiate or accept **with reserve or against indemnity**, that is to say, the bank has recourse to the beneficiary.
支付、议付或接受
保留金或赔偿，也就是说，银行对受益人有追索权。
-
- 在信用证项下，银行对出口商进行装运前的融资是怎样运作的？这种融资对出口商和融资行分别有什么优缺点？指出至少五种银行控制融资风险的方法。
 - Finance to the Exporter 出口商融资
When the exporter will or has received a L/C, but he is unable to finance the purchase or production of the goods that are to be delivered, banks are requested to
pre-export financing so that the exporter may fulfill his contractual

obligations and profit from the transaction.

当出口商将收到或已经收到信用证，但他无法为购买或生产将要交付的货物提供资金时，银行被要求提供

出口前融资，以便出口商履行其合同义务并从交易中获利。

◦ 此类融资安排包括：

1. Red clause L/C 红色条款信用证

A red clause L/C places the onus of final repayment on the applicant, who would be liable for repayment of the advances and all costs if the beneficiary failed to present the documents called for under the credit.

2. Transferable credit 可转让信用证

可转让信用证是指信用证的受益人（第一受益人）可以请求授权付款、承担延期付款责任、承兑或议付的银行（转让行），或如果是自由议付信用证时可以要求信用证特别授权的转让行，将信用证全部或部分转让给一个或数个受益人（第二受益人）使用的信用证。

3. Packing Loan

如：最迟装运日-贷款申请日+30days

4. Negotiation and Outward Bill Purchased 议付及购出汇票

5. Bank's considerations when granting finance 银行在提供融资时的考虑事项

a. Creditworthiness of borrower: 借款人资信情况

i. balance sheets; 资产负债表

ii. reputation; 名誉

iii. financial standing; 财务状况

iv. nature of business; 营业性质

v. track record; 业绩记录

vi. future outlook. 未来展望

b. Security of letter of credit: 信用证担保

i. standing/ reputation of the issuing bank; 开证行的信誉

ii. country risk; 国家风险

iii. authenticity; 真实性

iv. terms of credit; 信用证条款

- v. confirmed/ unconfirmed. 已确认/未确认
- c. Foreign exchange risks: 外汇风险
 - i. hedging. 套期保值
- d. Supplier: 供应商
 - i. standing & ability; 地位和能力
 - ii. reputation; 声誉
 - iii. track record; 业绩记录
 - iv. nature of business/ goods. 业务/货物性质

6. How to minimize risks 控制融资风险的方法

- a. Always try to obtain the original letter of credit.
始终设法获得信用证原件。
- b. Ensure that the letter of credit is genuine (signature, test key) if in doubt contact the issuing bank for their confirmation.
确保信用证真实（签名、测试密钥），如有疑问，请联系开证行进行确认。
- c. If the letter of credit was advised through another bank, inform the advising bank that your customer has authorized you to "handle" this transaction.
如果信用证是通过另一家银行通知的，请告知通知行，您的客户已授权您“处理”此交易。
- d. Consider the status of the issuing bank.
考虑开证行的状态。
- e. Examine terms of the credit, can the bank lend against the credit?
检查信用证的条款，银行是否可以凭信用证贷款？
- f. Always obtain a copy of the exporter's proforma invoice that has been sent to the ultimate seller. If in doubt, contact the seller to "confirm" the transaction.
始终获取一份已发送给最终卖方的出口商形式发票副本。如有疑问，请联系卖方“确认”交易。
- g. If deemed necessary, try and obtain copies of the related contracts between all parties.
如有必要，尝试获取各方之间的相关合同副本。

h. Try and ensure that payment to the seller is made directly to the seller's bank.

尽量确保向卖方支付的款项直接支付给卖方银行。

i. If possible, don't advance the whole purchase price but rather 80% thereof.

如果可能的话，不要预付全部货款，而要预付百分之八十。

j. Upon receipt of the documents, ensure that they conform to the credit terms.

收到单据后，确保其符合信用证条款。

Ch8 信用证项下的单据

Documents Under the Credit

毛都没有

Ch9 国际保理与福费廷

International Factoring and Forfeiting

- 简述保理的功能及对出口商的有利方面。

好处	对出口商	对进口商
增加营业额	提供有竞争力的O/A,D/A条件	利用O/A,D/A条件加快资金流动
风险保障	得到100%收汇保障	凭信誉获买方信贷, 无须抵押
节约成本	资信调查和催收由保理商负责, 减轻业务负担	省却开证和处理文件费用
简化手续	免除信用证的繁琐手续	简化购买手续

O/A (Open Account transaction) 就是赊帐交易, 即为货到付款
D/A (Document Against Acceptance) 承兑交单, 是在跟单托收方式下, 出口方 (或代收银行) 向进口方以承兑为条件交付单据的一种办法。

名词解释

- Remittance by banker's demand draft (D/D) 票汇（银行即期汇票汇款）

A bank's draft is

a negotiable instrument drawn by a bank on its overseas branch or its correspondent abroad ordering the latter to pay on demand the stated amount to the holder of the draft. It is often used when the client wants to transfer the funds to his beneficiary himself.

银行即期汇票是由汇出行开给它的海外分行或代理行的流通票据，指示后者即期支付规定的金额给汇票的持票人。这种汇款方式通常在客户希望自己将款项移交给受益人本人时使用。

- Collection 托收

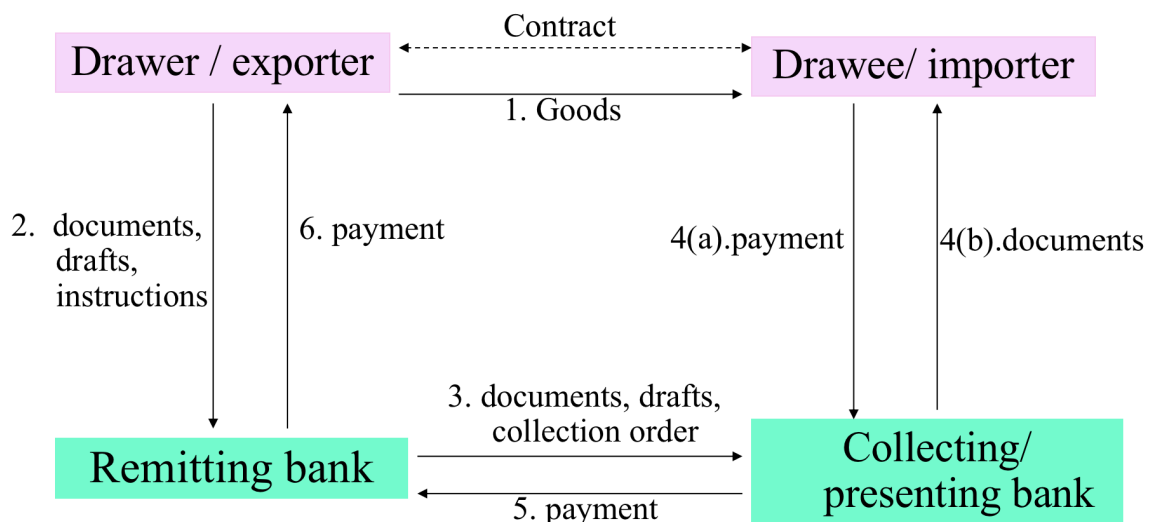
Collection is an arrangement whereby the goods are shipped and a relevant bill of exchange is drawn by the seller on the buyer, and / or shipping documents are forwarded to the seller's bank with clear instructions for collection through one of its correspondent bank located in the domicile of the buyer.

托收是这样一种安排，即出口商在货物装运后，开出以进口商为付款人的相关汇票，将汇票和（或）货运单据连同其明确的托收指示交给出口地银行，委托出口地银行通过其在进口商所在地的往来银行向进口商收取货款。

- Documents against payment (D/P) 付款凭证

Definition: The collecting bank may release the documents only against full and immediate payment, insofar as national, federal or local laws or regulations do not prevent it.

代收行在法律或规则不加禁止的范围内，在即时全部收到货款的条件下交出单据。

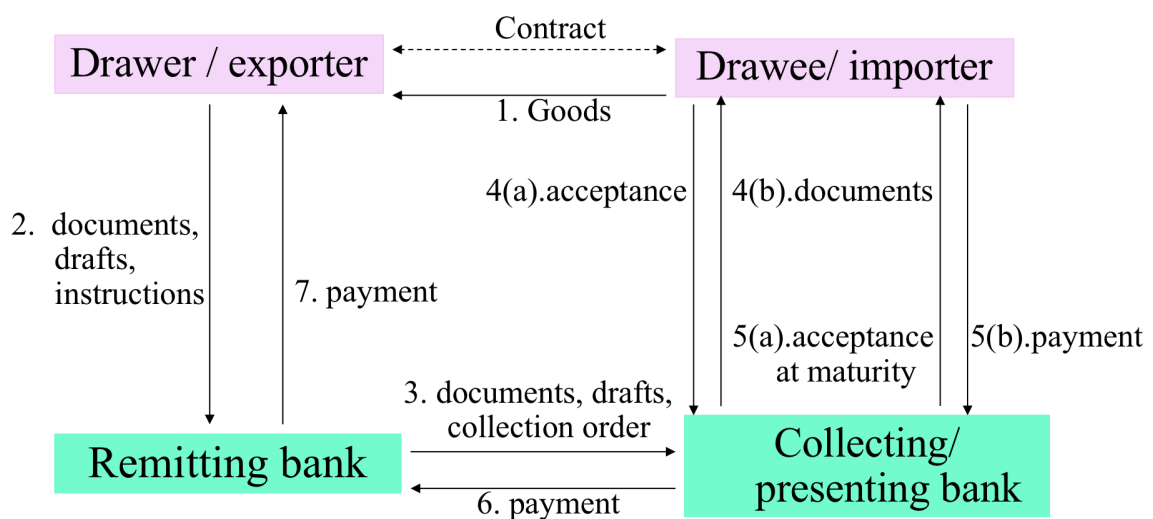


- Documents against acceptance (D/A) 承兑交单

The collecting bank may release the documents to the buyer against the buyer's acceptance of a draft, drawn

payable 30~180 days after sight or due on a definite date.

代收行在买方承兑汇票，汇票在见票后30~180天到期付款或在一个确定的日期到期付款的条件下向买方交出单据。



- Clean collection 光票托收

Clean collections are collections on

financial instruments without being accompanied by commercial documents.

意指金融单据的托收，而不伴随商业单据，如：发票、提单、保险单等等。

- Direct collection vs. Indirect collection

Direct collection is an arrangement whereby the seller obtains his bank's

pre-numbered direct collection letter, thus enabling him to send his documents directly to his bank's correspondent bank for collection. This kind of collection accelerates the paperwork process.

是指卖方从他的银行即托收行那里获得托收指示的空白格式，由他自己填写，连同托收单据直接寄给买方银行，即代收行，请其代收货款，并将已经填妥的托收格式副本送给托收行，请其将此笔托收视同本行办理一样。这种托收提高了效率。

- Trust receipt 信托收据

Financing by banks for importers under documentary collection methods takes the form of trust receipt. On collection terms basis, if the collecting bank has a great degree of trust in the importer, the bank may be willing to release the negotiable bill of lading, and thereby also the goods, to the importer against the signing of a trust receipt. After the importer has made his final sale and received the proceeds, he can pay the collecting bank that granted the advance.

跟单托收项下，银行向进口商融资常采用信托收据的形式。在托收条款的基础上，如果托收行对进口商有很大程度的信任，银行可能愿意在签署信托收据的情况下向进口商放行可转让提单，从而也放行货物。进口商销货并收回货款后再行偿付代收银行。

- Letter of Credit (L/C) 信用证

The documentary credit or letter of credit is an undertaking issued by a bank for the account of the buyer (the applicant) or for its own account, to pay the beneficiary the value of the draft and/or documents provided that the terms and conditions of the documentary credit are complied with.

跟单信用证或信用证是银行为买方（申请人）或其自身的账户开立的承诺，在符合跟单信用证条款和条件的情况下，向受益人支付汇票和/或单据的价值。

汉译英

(1) 一般划线支票 [[generally crossed check]]

(2) 特殊划线支票 [[specially crossed check]]

(3) 过期支票 [[a check that is out of date]]

(4) 未到期支票 [[post dated check]]

(5) 大小写金额 [[amount in words]]

(6) 白背书 [[blank endorsement]]

(7) 特别背书 [[special endorsement]]

(8) 限制性背书 [[restrictive endorsement]]

(9) 跟单汇票 [[documentary bill]]

(10) 即期汇票 [[sight draft]]

(11) 远期汇票 [[usance/term bill]]

(12) 承兑汇票 [[acceptance bill]]

(13) 可确定的未来某一天 [[determinable future date]]

(14) 光票 [[clean bill]]

(15) 流通票据 [[negotiable instrument]]

(16) 贴现行 [[discounting house]]

(17) 商人银行 [[merchant bank]]

(18) 无条件的付款承诺 [[unconditional promise of payment]]

(19) 负连带责任 [[jointly and severally responsible]]

(20) 出票后90天付款 [[payable 90 days after date]]

(1) Commercial invoice [[The commercial invoice is the key accounting document describing the commercial transaction between the buyer and the seller. It is a document giving details of goods, service, price, quantity, settlement terms and shipment.]]

商业发票：商业发票是描述买卖双方之间商业交易的关键会计凭证。这是一份详细说明货物、服务、价格、数量、结算条件和装运的单据。

(2) Export license [An export license is a document prepared by a government authority of a nation granting the right to export a specific quantity of a commodity to a specified country.]

出口许可证【出口许可证是由一个国家的政府部门编制的文件，授予向指定国家出口特定数量商品的权利。】

(3) Bill of lading [A bill of lading is a document issued by a carrier to a shipper, signed by the captain, agent, or owner of a vessel, providing written evidence regarding receipt of the goods, the conditions on which transportation is made, and the engagement to deliver goods at the prescribed port of destination to the lawful holder of the bill of lading.]

提单【提单是由承运人向托运人签发的由船长、代理人或船东签署的文件，提供有关收到货物、运输条件以及在规定目的港向提单合法持有人交付货物的书面证据。】

(4) Inspection certificate [A document issued by an authority indicating that goods have been inspected prior to shipment and the results of the inspection.]

检验证书【由当局签发的文件，表明货物在装运前已经过检验以及检验结果。】

(5) Consular invoice [A consular invoice is an invoice covering a shipment of goods certified in the country of export by a local consul of the country for which the merchandise is destined.]

领事发票【领事发票是指由商品目的地国的当地领事在出口国认证的货物装运发票。】